

HOUSE BILL 2211

By Powell

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 33; Title 37; Title 49; Title 68 and Title 71,
relative to immigration status of children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Safe Access to Schools and Child Services Act."

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 3, Part 1, is amended by adding the following as a new section:

(a) A state agency or local agency shall not condition enrollment, attendance, or the receipt of services for a child who is under eighteen (18) years of age on the disclosure of the child's immigration status, except as explicitly required by federal or state law or court order.

(b) This section does not limit compliance with federal immigration law or limit cooperation with federal authorities as required by law.

(c) As used in this section:

(1) "Local agency" means any county, municipality, branch or agency of a county or municipality, public utility, utility district, entity created pursuant to any interlocal agreement, or any other political subdivision thereof, and includes an LEA, public school, and public charter school; and

(2) "State agency" means each state board, commission, committee, department, office, or any other unit of state government.

SECTION 3. Tennessee Code Annotated, Title 37, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) The department shall not condition enrollment, attendance, or the receipt of services for a child who is under eighteen (18) years of age on the disclosure of the child's immigration status, except as explicitly required by federal or state law or court order.

(b) This section does not limit compliance with federal immigration law or limit cooperation with federal authorities as required by law.

SECTION 4. Tennessee Code Annotated, Title 49, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) A state agency or local agency shall not condition enrollment, attendance, or the receipt of services for a child who is under eighteen (18) years of age on the disclosure of the child's immigration status, except as explicitly required by federal or state law or court order.

(b) This section does not limit compliance with federal immigration law or limit cooperation with federal authorities as required by law.

(c) As used in this section:

(1) "Local agency" means any county, municipality, branch or agency of a county or municipality, public utility, utility district, entity created pursuant to any interlocal agreement, or any other political subdivision thereof, and includes an LEA, public school, and public charter school; and

(2) "State agency" means each state board, commission, committee, department, office, or any other unit of state government.

SECTION 5. Tennessee Code Annotated, Title 71, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) The department shall not condition enrollment, attendance, or the receipt of services for a child who is under eighteen (18) years of age on the disclosure of the

child's immigration status, except as explicitly required by federal or state law or court order.

(b) This section does not limit compliance with federal immigration law or limit cooperation with federal authorities as required by law.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.